

THE REGISTRATION ACT, 1908
(XVI of 1908)

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THE SECHEDULE
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TEXT

¹THE REGISTRATION ACT, 1908

(XVI of 1908)

[19 December 1908]

An

Act

to consolidate the enactments relating to the Registration of Documents.

WHEREAS it is expedient to consolidate the enactments relating to the registration of documents; It is hereby enacted as follows:—

PART I

Preliminary

1. Short title, extent and commencement.— (1) This Act may be called the ²[*] Registration Act, 1908.

³[(2) It extends to whole of the Punjab, except such districts or parts thereof as the Government may exclude from its operation.]

(3) It shall come into force on the first day of January, 1909.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(1) “addition” means the place of residence, and the profession, trade, rank and title (if any) of a person described, ⁴[* * * * *] and his father's name, or where he is usually described as the son of his mother, then his mother's name:

(2) “book” includes a portion of a book and also any number of sheets connected together with a view of forming a book or portion of a book:

⁵[(2a) “co-operative society” means a co-operative society registered under the Cooperative Societies Act, 1912 (II of 1912), or under any other law for the time being in force relating to the registration of co-operative societies;]

¹This Act was published in the Gazette of India (Extraordinary), dated: 19 December 1908, pp. 231-246. For Statement of Objects and Reasons, see Gazette of India, 1908, Part V, p. 325; for Report of Select Committee, see *ibid.*, 1908, Part V, p. 387; and for Proceedings in Council, see *ibid.*, 1908, Part VI, pp. 148, 154 and 182.

²The word “Indian” was omitted by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with the Schedule.

³Substituted by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 2.

⁴The expression “and, in the case of a native of Pakistan his caste (if any)” was omitted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. The word “Pakistan” was earlier substituted for the word “India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with the Schedule.

⁵Inserted by the Registration Act (Amendment) Ordinance, 1961 (XXXII of 1961), published in the Gazette of Pakistan (Extraordinary), dated: 31 July 1961, pp. 1165a-1165b, s. 2.

- (3) “district” and “sub-district” respectively mean a district and sub-district formed under this Act:
- (4) “District Court” includes ¹[Lahore High Court] in its ordinary original civil jurisdiction:
- (5) “endorsement” and “endorsed” include and apply to an entry in writing by a registering officer on a rider or covering slip to any document tendered for registration under this Act:
- ²[(5a) “Government” means Government of the Punjab;]
- ³[(6) “immoveable property” includes land, buildings, benefits to arise out of land and things attached to the earth, or permanently fastened to anything attached to the earth, hereditary allowances, rights to ways, lights, ferries and fisheries but does not include—
 - (a) standing timber, growing crops or grass whether immediate severance thereof is intended or not;
 - (b) fruit upon and juice in trees whether in existence or to grow in future; and
 - (c) machinery embedded in or attached to the earth, when dealt with apart from the land:]
- ⁴[(7) “lease” includes a counter-part, kabuliyat and an undertaking to cultivate or occupy:]
- (8) “minor” means a person who, according to the personal law to which he is subject, has not attained majority:
- ⁵[(9) “moveable property” means property of every description, except immoveable property:]
- (10) “representative” includes the guardian of a minor and the committee or other legal curator of a lunatic or idiot.

PART II

Of the Registration-Establishment

3. Inspector General of Registration.— (1) The ⁶[Government] shall appoint an officer to be the Inspector General of Registration for the ⁷[the Punjab]:

¹Substituted for the words “the High Court” by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 3.

²Inserted *ibid*.

³Substituted by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 2.

⁴*Ibid*.

⁵*Ibid*.

⁶Substituted for the words “Provincial Government” by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 4. They were earlier substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁷Substituted for the words “territories subject to such Government” by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 4.

Provided that the ¹[Government] may, instead of making such appointment, direct that all or any of the powers and duties hereinafter conferred and imposed upon the Inspector General shall be exercised and performed by such officer or officers, and within such local limits, as the ²[Government] appoints in this behalf.

(2) Any Inspector General may hold simultaneously any other office ³[in the service of the State].

⁴[4. *Branch Inspector General of Sindh.*— * * * *]

5. Districts and sub-districts.— (1) For the purposes of this Act, the ⁵[Government] shall form districts and sub-districts, and shall prescribe, and may alter, the limits of such districts and sub-districts.

(2) The districts and sub-districts formed under this section, together with the limits thereof, and every alteration of such limits, shall be notified in the ⁶[Official Gazette].

(3) Every such alteration shall take effect on such day after the date of the notification as is therein mentioned.

6. Registrars and Sub-Registrars.— The ⁷[Government] may appoint such persons, whether public officers or not, as it thinks proper, to be Registrars of the several districts, and to be Sub-Registrars of the several sub-districts, formed as aforesaid, respectively.

⁸[* * * * *]

¹Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 4. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

²*Ibid.*

³Substituted for the words "under the Crown" by the Central Laws (Adaptation) Order, 1961 (P. O. No. 1 of 1961); made by the Minister exercising the functions of President under Article 2 of the State Arrangements Order, 1959 on 21 January 1961; and, was published in the Gazette of Pakistan (Extraordinary), dated: 24 January 1961, pp.102-163, Article 2 read with the Table: it came into force on 23 March 1956. They were earlier substituted for the words "under Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

⁴Repealed by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

⁵Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁶Substituted for the words "local official Gazette" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁷Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁸The proviso was omitted by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule. It was inserted by the Decentralization Act, 1914 (IV of 1914); assented to by the Governor General on 24 February 1914; and, was published in the Gazette of India (Extraordinary), dated: 28 February 1914, pp. 21-32, s. 2 read with the Schedule.

7. Offices of Registrar and Sub-Registrar.— (1) The ¹[Government] shall establish in every district an office to be styled the office of the Registrar and in every sub-district an office or offices to be styled the office of the Sub-Registrar or the offices of the Joint Sub-Registrars.

(2) The ²[Government] may amalgamate with any office of a Registrar any office of a Sub-Registrar subordinate to such Registrar, and may authorize any Sub-Registrar whose office has been so amalgamated to exercise and perform, in addition to his own powers and duties, all or any of the powers and duties of the Registrar to whom he is subordinate:

Provided that no such authorization shall enable a Sub-Registrar to hear an appeal against an order passed by himself under this Act.

8. Inspectors of Registration-offices.— (1) The ³[Government] may also appoint officers, to be called Inspectors of Registration-offices, and may prescribe the duties of such officers.

(2) Every such Inspector shall be subordinate to the Inspector General.

⁴[9. *Military cantonments may be declared sub-districts or districts.*— * * * * *]

10. Absence of Registrar or vacancy in his office.— (1) When any Registrar, ⁵[* * * * *], is absent otherwise than on duty in his district, or when his office is temporarily vacant, any person whom the Inspector General appoints in this behalf, or, in default of such appointment, the Judge of the District Court within the local limits of whose jurisdiction the Registrar's office is situate, shall be the Registrar during such absence or until the ⁶[Government] fills up the vacancy.

⁷[(2) * * * * *]

11. Absence of Registrar on duty in his district.— When any Registrar is absent from his office on duty in his district, he may appoint any Sub-Registrar or

¹ Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

² *Ibid.*

³ Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁴ Repealed by the Repealing and Amending Act, 1927 (X of 1927); assented to by the Governor General on 4 April 1927; and, was published in the Gazette of India (Extraordinary), dated: 16 April 1927, pp. 19-25, s. 3 read with the Second Schedule.

⁵ Omitted the words "other than the Registrar of a district including a Presidency-town" by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with the Schedule.

⁶ Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁷ Omitted by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with the Schedule.

other person in his district to perform, during such absence, all the duties of a Registrar except those mentioned in sections 68 and 72.

12. Absence of Sub-Registrar or vacancy in his office.— When any Sub-Registrar is absent, or when his office is temporarily vacant, any person whom the Registrar of the district appoints in this behalf shall be Sub-Registrar during such absence, or until ¹[the vacancy is filled up].

13. Report of certain appointments and suspension and removal and dismissal of officers.— (1) ²[*****] All appointments made under section 10, section 11 or section 12 shall be reported to the ³[Government] by the Inspector General.

(2) Such report shall be either special or general, as the ⁴[Government] directs.

⁵[(3) * * * * *]

14. Remuneration and establishments of registering officers.— ⁶[(1) * * * * *]

(2) The ⁷[Government] may allow proper establishments for the several offices under this Act.

15. Seal of registering officers.— The several Registrars and Sub-Registrars shall use a seal bearing the following inscription in English and in such other language as the ⁸[Government] directs:— “The seal of the Registrar (or of the Sub-Registrar) of.”

16. Register books and fire-proof boxes.— (1) The ⁹[Government] shall provide for the office of every registering officer the books necessary for the purposes of this Act.

¹Substituted for the words “the Local Government fills up the vacancy” by the Decentralization Act, 1914 (IV of 1914); assented to by the Governor General on 24 February 1914; and, was published in the Gazette of India (Extraordinary), dated: 28 February 1914, pp. 21-32, s. 2 read with the Schedule.

²Omitted the expression “All appointments made by the Inspector-General under section 6 and” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule. They were earlier inserted by the Decentralization Act, 1914 (IV of 1914); assented to by the Governor General on 24 February 1914; and, was published in the Gazette of India (Extraordinary), dated: 28 February 1914, pp. 21-32, s. 2 read with the Schedule.

³Substituted for the words “Provincial Government” by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁴*Ibid.*

⁵Omitted by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

⁶*Ibid.*

⁷Substituted for the words “Provincial Government” by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁸*Ibid.*

⁹Substituted for the words “Provincial Government” by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

(2) The books so provided shall contain the forms from time to time prescribed by the Inspector General with the sanction of the ¹[Government], and the pages of such books shall be consecutively numbered in print, and the number of pages in each book shall be certified on the title-page by the officer by whom such books are issued.

(3) The ²[Government] shall supply the office of every Registrar with a fire-proof box, and shall in each district make suitable provision for the safe custody of the records connected with the registration of documents in such district.

PART III Of Registerable Documents

17. Documents of which registration is compulsory.— (1) The following documents shall be registered, if the property to which they relate is situate in a district in which, and if they have been executed on or after the date on which, Act No. XVI of 1864, or the Indian Registration Act, 1866³, or the Indian Registration Act, 1871⁴ or the Indian Registration Act, 1877⁵, or this Act came or comes into force, namely:—

- (a) instruments of gift of immoveable property;
- (b) other non-testamentary instruments which purport or operate to create, declare, assign, limit or extinguish, whether in present or in future, any right, title or interest, whether vested or contingent, of the value of one hundred rupees and upwards, to or in immoveable property;

⁶[**Explanation.**— In the case of an assignment of a mortgage the consideration for the deed of assignment shall be deemed to be the value for registration;]

⁷[(bb) an instrument which grants power to an attorney or which constitutes an agreement to create, declare, assign, limit or extinguish, by way of sale, any right, title or interest of the value of one hundred rupees and upwards, to or in immovable property;]

- (c) non-testamentary instruments ⁸[other than the acknowledgement of a receipt or payment made in respect of any transaction to which an instrument registered under ⁹[clause (b)] relates] which acknowledge the receipt or payment of any consideration on account of the creation, declaration, assignment, limitation or extinction of any such right, title or interest; and

¹ *Ibid.*

² *Ibid.*

³ XX of 1866.

⁴ VII of 1871.

⁵ III of 1877.

⁶ Added by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 3.

⁷ Inserted by the Registration (Amendment) Act 2018 (XXVI of 2018), published in the Punjab Gazette (Extraordinary), dated: 24 May 2018, pp. 8167-8168, s. 2.

⁸ Inserted by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 3.

⁹ Substituted for the expression "clause (a)" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 6.

- (d) leases of immoveable property from year to year, or for any term exceeding one year, or reserving a yearly rent;
- ¹[(e) non-testamentary instruments transferring or assigning any decree or order of a Court or any award when such decree or order or award purports or operates to create, declare, assign, limit or extinguish, whether in present or in future, any right, title or interest, whether vested or contingent, of the value of one hundred rupees and upwards to or in immoveable property:]

Provided that the ²[Government] may, by order published in the ³[Official Gazette], exempt from the operation of this sub-section any leases executed in any district, or part of a district, the terms granted by which do not exceed five years and the annual rents reserved by which do not exceed fifty rupees.

- (2) Nothing in clauses (b) and (c) of sub-section (1) applies to—
 - (i) any composition-deed; or
 - (ii) any instrument relating to shares in a Joint Stock Company, notwithstanding that the assets of such Company consist in whole or in part of immoveable property; or
 - (iii) any debenture issued by any such Company and not creating, declaring, assigning, limiting or extinguishing any right, title or interest, to or in immoveable property except in so far as it entitles the holder to the security afforded by a registered instrument whereby the Company has mortgaged, conveyed or otherwise transferred the whole or part of its immoveable property or any interest therein to trustees upon trust for the benefit of the holders of such debentures; or
 - (iv) any endorsement upon or transfer of any debenture issued by any such Company; or
 - (v) any document not itself creating, declaring, assigning, limiting or extinguishing any right, title or interest of the value of one hundred rupees and upwards to or in immoveable property, but merely creating a right to obtain another document which will, when executed, create, declare, assign, limit or extinguish any such right, title or interest ⁴[except a document which grants power to an attorney or is an agreement to sell any right, title or interest of the said value in immovable property]; or

¹Inserted by the Transfer of Property (Amendment) Supplementary Act, 1929 (XXI of 1929); assented to by the Governor General on 4 October 1929; and, was published in the Gazette of India (Extraordinary), dated: 25 October 1929, pp. 133-153, s. 10: it came into force on 1 April 1930.

²Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 6. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

³Substituted for the words "local official Gazette" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁴Inserted by the Registration (Amendment) Act 2018 (XXVI of 2018), published in the Punjab Gazette (Extraordinary), dated: 24 May 2018, pp. 8167-8168, s. 2.

- (vi) any decree or order of a Court ¹[except a decree or order expressed to be made on a compromise and comprising immoveable property other than that which is the subject-matter of the suit or proceeding]; or
- (vii) any grant of immoveable property by ²[the Federal Government or the Provincial Government]; or
- (viii) any instrument of partition made by a Revenue-officer; or
- (ix) any order granting a loan or instrument of collateral security granted under ³[* * * * *] the Land Improvement Loans Act, 1883⁴; or
- ⁵[(x) any order granting a loan under the ⁶[⁷[Punjab Agriculturists' Loans Act, 1958] (W.P. Act XVII of 1958)], the Agricultural Development Bank Ordinance, 1961 (Ordinance No. IV of 1961), or under any other law for the time being in force relating to the advancement of loans for agricultural purposes, or any instrument under which a loan is granted by a co-operative society for any such purpose, or any instrument made for securing the repayment of a loan so granted; or]
- (xi) any endorsement on a mortgage-deed acknowledging the payment of the whole or any part of the mortgage-money, and any other receipt for payment of money due under a mortgage ⁸[* * * * *]; or
- (xii) any certificate of sale granted to the purchaser of any property sold by public auction by a Civil or Revenue Officer ⁹[; or]
- ¹[(xiii) any counter-part of a lease, where the lease corresponding thereto has itself been registered.]

¹Substituted for the words "and any award" by the Transfer of Property (Amendment) Supplementary Act, 1929 (XXI of 1929); assented to by the Governor General on 4 October 1929; and, was published in the Gazette of India (Extraordinary), dated: 25 October 1929, pp. 133-153, s. 10: it came into force on 1 April 1930.

²Substituted for the words "the [Government]" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 6. The word in crotchets was earlier substituted for the word "Crown" by the Central Laws (Adaptation) Order, 1961 (P. O. No. 1 of 1961); made by the Minister exercising the functions of President under Article 2 of the State Arrangements Order, 1959 on 21 January 1961; and, was published in the Gazette of Pakistan (Extraordinary), dated: 24 January 1961, pp.102-163, Article 2 read with the Table: it came into force on 23 March 1956. The words "the Crown" were earlier substituted for the word "Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

³The expression "the Land Improvement Act, 1871, or" was omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), published in the Gazette of Pakistan (Extraordinary), dated: 8 July 1981, pp. 345-475, s. 3 read with the Second Schedule.

⁴XIX of 1883.

⁵Substituted by the Registration Act (Amendment) Ordinance, 1961 (XXXII of 1961), published in the Gazette of Pakistan (Extraordinary), dated: 31 July 1961, pp. 1165a-1165b, s. 3.

⁶Substituted for the expression "Agriculturists' Loans Act, 1884" by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), published in the Gazette of Pakistan (Extraordinary), dated: 8 July 1981, pp. 345-475, s. 3 read with the Second Schedule.

⁷Substituted for the expression "West Pakistan Agriculturists' Loans Act, 1958" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 6.

⁸The words "when the receipt does not purport to extinguish the mortgage" were omitted by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 3.

⁹Substituted for the "full stop" by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 3.

²[**Explanation.**— A document purporting or operating to effect a contract for the sale of immoveable property shall not be deemed to require or ever to have required registration by reason only of the fact that such document contains a recital of the payment of any earnest money or of the whole or any part of the purchase-money.]

(3) Authorities to adopt a son, executed after the first day of January, 1872, and not conferred by a will, shall also be registered.

18. Documents of which registration is optional.— ³[Any document not required to be registered under section 17 may also be registered under this Act.]

19. Documents in language not understood by registering officer.— If any document duly presented for registration be in a language which the registering officer does not understand, and which is not commonly used in the district, he shall refuse to register the document, unless it be accompanied by a true translation into a language commonly used in the district and also by a true copy.

20. Documents containing interlineations, blanks, erasures or alterations.—

(1) The registering officer may in his discretion refuse to accept for registration any document in which any interlineation, blank, erasure or alteration appears, unless the persons executing the document attest with their signatures or initials such interlineation, blank, erasure or alteration.

(2) If the registering officer registers any such document, he shall, at the time of registering the same, make a note in the register of such interlineation, blank, erasure or alteration.

21. Description of property and maps or plans.— (1) No non-testamentary document relating to immoveable property shall be accepted for registration unless it contains a description of such property sufficient to identify the same.

(2) Houses in towns shall be described as situate on the north or other side of the street or road (which should be specified) to which they front, and by their existing and former occupancies, and by their numbers if the houses in such street or road are numbered.

(3) Other houses and lands shall be described by their name, if any, and as being in the territorial division in which they are situate, and by their superficial contents, the roads and other properties on which they abut, and their existing occupancies, and also, whenever it is practicable, by reference to a Government map or survey.

(4) No non-testamentary document containing a map or plan of any property comprised therein shall be accepted for registration unless it is accompanied by a true copy of the map or plan, or, in case such property is situate in several districts, by such number of true copies of the map or plan as are equal to the number of such districts.

¹ Added by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 3.

² Inserted by the Indian Registration (Amendment) Act, 1927 (II of 1927); assented to by the Governor General on 18 February 1927; and, was published in the Gazette of India (Extraordinary), dated: 26 February 1927, p. 3, s. 2.

³ Substituted by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 4.

22. Description of houses and land by reference to Government maps or surveys.— (1) Where it is, in the opinion of the ¹[Government], practicable to describe houses, ²[not being houses in towns], and lands by reference to a Government map or survey, the ³[Government] may, by rule made under this Act, require that such houses and lands as aforesaid shall, for the purposes of section 21, be so described.

(2) Save as otherwise provided by any rule made under sub-section (1), failure to comply with the provisions of section 21, sub-section (2) or sub-section (3), shall not disentitle a document to be registered if the description of the property to which it relates is sufficient to identify that property.

PART IV Of the Time of Presentation

23. Time for presenting documents.— Subject to the provisions contained in sections 24, 25 and 26, no document other than a will shall be accepted for registration unless presented for that purpose to the proper officer within four months from the date of its execution:

Provided that a copy of a decree or order may be presented within four months from the day on which the decree or order was made, or, where it is appealable, within four months from the day on which it becomes final.

⁴**[23A. Re-registration of certain documents.**— Notwithstanding anything to the contrary contained in this Act, if in any case a document requiring registration has been accepted for registration by a Registrar or Sub-Registrar from a person not duly empowered to present the same, and has been registered, any person claiming under such document may, within four months from his first becoming aware that the registration of such document is invalid, present such document or cause the same to be presented, in accordance with the provisions of Part VI for re-registration in the office of the Registrar of the district in which the document was originally registered; and upon the Registrar being satisfied that the document was so accepted for registration from a person not duly empowered to present the same, he shall proceed to the re-registration of the document as if it had not been previously registered, and as if such presentation for re-registration was a presentation for registration made within the time allowed therefor under Part IV, and all the provisions of this Act, as to registration of documents, shall apply to such re-registration; and such document, if duly re-registered in accordance with the

¹Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

²Omitted the words "not being houses in towns" by the Registration (Punjab Amendment) Act, 1941 (Punjab Act VIII of 1941), published in the Gazette of Punjab, dated: 23 May 1941, s. 2.

³Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁴Inserted by the Indian Registration (Amendment) Act, 1917 (XV of 1917); assented to by the Governor General on 13 September 1917; and, was published in the Gazette of India (Extraordinary), dated: 15 September 1917, p. 57, s. 2.

provisions of this section, shall be deemed to have been duly registered for all purposes from the date of its original registration:

Provided that within three months from the twelfth day of September, 1917, any person claiming under a document to which this section applies may present the same or cause the same to be presented for re-registration in accordance with this section, whatever may have been the time when he first became aware that the registration of the document was invalid.]

24. Documents executed by several persons at different times.— Where there are several persons executing a document at different times, such document may be presented for registration and re-registration within four months from the date of each execution.

25. Provision where delay in presentation is unavoidable.— (1) If, owing to urgent necessity or unavoidable accident, any document executed, or copy of a decree or order made, in ¹[the Punjab] is not presented for registration till after the expiration of the time hereinbefore prescribed in that behalf, the Registrar, in cases where the delay in presentation does not exceed four months, may direct that, on payment of a fine not exceeding ten times the amount of the proper registration-fee, such document shall be accepted for registration.

(2) Any application for such direction may be lodged with a Sub-Registrar, who shall forthwith forward it to the Registrar to whom he is subordinate.

26. Documents executed out of ²[Pakistan].— When a document purporting to have been executed by all or any of the parties out of ³[Pakistan] is not presented for registration till after the expiration of the time hereinbefore prescribed in that behalf, the registering officer, if satisfied—

- (a) that the instrument was so executed, and
- (b) that it has been presented for registration within four months after its arrival in ⁴[Pakistan],

may, on payment of the proper registration-fee, accept such document for registration.

27. Wills may be presented or deposited at any time.— A will may at any time be presented for registration or deposited in manner hereinafter provided.

PART V

¹Substituted for the words "Pakistan" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 7. It was earlier substituted for the words "the Provinces and the Capital of the Federation" by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words "British India" by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

²Substituted for the words "the Provinces and the Capital of Federation" by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words "British India" by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

³*Ibid.*

⁴*Ibid.*

Of the Place of Registration

28. Place for registering documents relating to land.— ¹[(1)] ²[Every] document mentioned in section 17, sub-section (1), clauses (a), (b), (c) ³[(d) and (e), section 17, sub-section (2), ⁴[and section 18, in so far as such document affects immovable property]], shall be presented for registration in the office of a Sub-Registrar within whose sub-district the whole or some portion of the property to which such document relates is situate.

⁵[(2) Notwithstanding anything contained in sub-section (1),—

- (a) after a document is registered, no party thereto shall be entitled to question the validity of its registration on the ground that the property which purported to give jurisdiction to the Sub-Registrar to register it either did not exist or was fictitious or insignificant or was not intended to be conveyed; and
- (b) a document the registration of which is secured by the inclusion of a non-existent, fictitious or insignificant portion or item shall not in any manner affect the rights of a person who was not a party thereto and acquired rights in the property without notice of the transaction to which such document relates.]

29. Place for registering other documents.— (1) Every document ⁶[not being a document referred to in section 28 or a copy of a decree or order], may be presented for registration either in the office of the Sub-Registrar in whose sub-district the document was executed, or in the office of any other Sub-Registrar under the ⁷[Government] at which all the persons executing and claiming under the document desire the same to be registered.

¹Numbered by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 5.

²Substituted for the expression "Save as in this Part otherwise provided, every" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 8.

³Substituted for the expression "and (d)" by the Indian Registration (Amendment) Act, 1940 (XXXIII of 1940), published in the Gazette of India (Extraordinary), dated: 30 November 1940, p. 128, s. 3.

⁴Substituted for the expression "in so far as such document affects immovable property, and section 18, clauses (a), (b) [(c) and (cc)]" by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 5. The expression in crotchets were earlier substituted for the expression "and (c)" by the Indian Registration (Amendment) Act, 1940 (XXXIII of 1940), published in the Gazette of India (Extraordinary), dated: 30 November 1940, p. 128, s. 3.

⁵Added by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 5.

⁶Substituted for the expression "other than a document referred to in section 28, and a copy of a decree or order" by the Repealing and Amending Act, 1940 (XXXII of 1940), published in the Gazette of India (Extraordinary), dated: 30 November 1940, pp. 123-127, s. 3 read with the Second Schedule.

⁷Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

(2) A copy of a decree or order may be presented for registration in the office of the Sub-Registrar in whose sub-district the original decree or order was made, or, where the decree or order does not affect immoveable property, in the office of any other Sub-Registrar under the ¹[Government] at which all the persons claiming under the decree or order desire the copy to be registered.

²**30. Registration by Registrars in certain cases.**— Any Registrar may, in his discretion, receive and register any document which might be registered by any Sub-Registrar subordinate to him.]

31. Registration or acceptance for deposit at private residence.— ³[The presentation, registration or deposit of documents under this Act shall ordinarily] be made only at the office of the officer authorized to accept the same for registration or deposit:

Provided that such officer may on special cause being shown attend at the residence of any person desiring to present a document for registration or to deposit a will, and accept for registration or deposit such document or will.

PART VI

Of Presenting Documents for Registration

32. Persons to present documents for registration.— Except in the cases mentioned in ⁴[* * *] section 89, every document to be registered under this Act, whether such registration be compulsory or optional, shall be presented ⁵[* * * * *],—

- (a) by some person executing or claiming under the same, or, in the case of a copy of a decree or order, claiming under the decree or order, or
- (b) by the representative or assign of such person, or
- (c) by the agent of such person, representative or assign, duly authorized by power-of-attorney executed and authenticated in manner hereinafter mentioned.

33. Powers-of-attorney recognizable for purposes of section 32.— (1) For the purposes of section 32, the following powers-of-attorney shall alone be recognized, namely:—

¹ *Ibid.*

² Substituted by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 9. Certain amendments were earlier made by the Registration (West Pakistan Amendment) Act, 1967 (XIV of 1967), published in the Gazette of West Pakistan (Extraordinary), dated: 21 October 1967, pp. 2988-C to 2988-D, s. 2 and the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 6.

³ Substituted for the expression "In ordinary cases the registration or deposit of documents under this Act shall" by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 7.

⁴ Omitted the expression "section 31 and" by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 8.

⁵ Omitted the expression "at the proper registration-office" *ibid.*

- (a) if the principal at the time of executing the power-of-attorney resides in any part of ¹[the Punjab] in which this Act is for the time being in force, a power-of-attorney executed before and authenticated by the Registrar or Sub-Registrar within whose district or sub-district the principal resides;
- (b) if the principal at the time aforesaid resides in any other part of ²[the Punjab or Pakistan], a power-of-attorney executed before and authenticated by any Magistrate;
- (c) if the principal at the time aforesaid does not reside in ³[Pakistan], a power-of-attorney executed before and authenticated by a Notary Public, or any Court, Judge, Magistrate, ⁴[Pakistan] Consul or Vice-Consul, or representative of ⁵[* * *] the ⁶[Federal Government]:

Provided that the following persons shall not be required to attend at any registration-office or Court for the purpose of executing any such power-of-attorney as is mentioned in clauses (a) and (b) of this section, namely,—

- (i) persons who by reason of bodily infirmity are unable without risk or serious inconvenience so to attend;
- (ii) persons who are in jail under civil or criminal process; and
- (iii) persons exempt by law from personal appearance in Court.

(2) In the case of every such person the Registrar or Sub-Registrar or Magistrate, as the case may be, if satisfied that the power-of-attorney has been voluntarily executed by the person purporting to be the principal, may attest the same without requiring his personal attendance at the office or Court aforesaid.

¹Substituted for the word "Pakistan" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 10. It was earlier substituted for the words "the Provinces and the Capital of the Federation" by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words "British India" by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

²*Ibid.*

³Substituted for the words "the Provinces and the Capital of the Federation" by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words "British India" by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4. by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

⁴Substituted for the word "British" by the Central Laws (Adaptation) Order, 1961 (P. O. No. 1 of 1961); made by the Minister exercising the functions of President under Article 2 of the State Arrangements Order, 1959 on 21 January 1961; and, was published in the Gazette of Pakistan (Extraordinary), dated: 24 January 1961, pp.102-163, Article 2 read with the Table: it came into force on 23 March 1956.

⁵Omitted the words "His Majesty or of" *ibid.*

⁶Substituted for the words "Central Government" by the Federal Adaptation Laws Order, 1975 (P.O. 4 of 1975), published in the Gazette of Pakistan (Extraordinary), dated: 1 August 1975, pp. 435-467, Article 2 read with the Table. They were earlier substituted by the words "Government of India" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

(3) To obtain evidence as to the voluntary nature of the execution, the Registrar or Sub-Registrar or Magistrate may either himself go to the house of the person purporting to be the principal, or to the jail in which he is confined, and examine him, or issue a commission for his examination.

(4) Any power-of-attorney mentioned in this section may be proved by the production of it without further proof when it purports on the face of it to have been executed before and authenticated by the person or Court hereinbefore mentioned in that behalf.

34. Enquiry before registration by registering officer.— (1) Subject to the provisions contained in this Part and in sections 41, 43, 45, 69, 75, 77, 88 and 89, no document shall be registered under this Act, unless the persons executing such document, or their representatives, assigns or agents authorized as aforesaid, appear before the registering officer within the time allowed for presentation under sections 23, 24, 25 and 26:

Provided that, if owing to urgent necessity or unavoidable accident all such persons do not so appear, the Registrar, in cases where the delay in appearing does not exceed four months, may direct that on payment of a fine not exceeding ten times the amount of the proper registration fee, in addition to the fine, if any, payable under section 25, the document may be registered.

(2) Appearances under sub-section (1) may be simultaneous or at different times.

(3) The registering officer shall thereupon—

(a) enquire whether or not such document was executed by the persons by whom it purports to have been executed;

(b) satisfy himself as to the identity of the persons appearing before him and alleging that they have executed the document; and

(c) in the case of any person appearing as a representative, assign or agent, satisfy himself of the right of such person so to appear.

(4) Any application for a direction under the proviso to sub-section (1) may be lodged with the Sub-Registrar, who shall forthwith forward it to the Registrar to whom he is sub-ordinate.

(5) Nothing in this section applies to copies of decrees or orders.

35. Procedure on admission and denial of execution respectively.— (1)(a) If all the persons executing the document appear personally before the registering officer and are personally known to him, or if he be otherwise satisfied that they are the persons they represent themselves to be, and if they all admit the execution of the document, or

(b) if in the case of any person appearing by a representative, assign or agent, such representative, assign or agent admits the execution, or

(c) if the person executing the document is dead, and his representative or assign appears before the registering officer and admits the execution,

the registering officer shall register the document as directed in sections 58 to 61, inclusive.

(2) The registering officer may, in order to satisfy himself that the persons appearing before him are the persons they represent themselves to be, or for any other purpose contemplated by this Act, examine any one present in his office.

(3)(a) If any person by whom the document purports to be executed denies its execution, or

(b) if any such person appears to the registering officer to be a minor, an idiot or a lunatic, or

(c) if any person by whom the document purports to be executed is dead, and his representative or assign denies its execution,

the registering officer shall refuse to register the document as to the person so denying, appearing or dead:

Provided that, where such officer is a Registrar, he shall follow the procedure prescribed in Part XII.

¹[Provided further that the ²[Government] may, by notification in the ³[Official Gazette], declare that any Sub-Registrar named in the notification shall, in respect of documents the execution of which is denied, be deemed to be a Registrar for the purposes of this sub-section and of Part XII.]

PART VII

Of Enforcing the Appearance of Executants and Witnesses

36. Procedure where appearance of executant or witness is desired.— If any person presenting any document for registration or claiming under any document, which is capable of being so presented, desires the appearance of any person whose presence or testimony is necessary for the registration of such document, the registering officer may, in his discretion, call upon such officer or Court as the ⁴[Government] directs in this behalf to issue a summons requiring him to appear at the registration-office, either in person or by duly authorized agent, as in the summons may be mentioned, and at a time named therein.

37. Officer or Court to issue and cause service of summons.— The officer or Court, upon receipt of the peon's fee payable in such cases, shall issue the summons accordingly, and cause it to be served upon the person whose appearance is so required.

¹ Added by the Indian Registration (Amendment) Act, 1926 (XIII of 1926); assented to by the Governor General on 9 March 1926; and, was published in the Gazette of India (Extraordinary), dated: 13 March 1926, p. 16, s. 2.

² Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

³ Substituted for the words "local official Gazette" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁴ Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

38. Persons exempt from appearance at registration-office.— (1) (a) A person who by reason of bodily infirmity is unable without risk or serious inconvenience to appear at the registration office, or

- (b) a person in jail under civil or criminal process, or
- (c) persons exempt by law from personal appearance in Court, and who would but for the provision next hereinafter contained be required to appear in person at the registration-office ¹[or],

²[(d) a person who is overseas,]

shall not be required so to appear.

(2) In the case of every such person the registering officer shall either himself go to the house of such person, or to the jail in which he is confined, and examine him or issue a commission for his examination.

39. Law as to summonses, commissions and witnesses.— The law in force for the time being as to summonses, commissions and compelling the attendance of witnesses, and for their remuneration in suits before Civil Courts, shall, save as aforesaid and mutatis mutandis, apply to any summons or commission issued and any person summoned to appear under the provisions of this Act.

PART VIII

Of Presenting Wills and Authorities to Adopt

40. Persons entitled to present wills and authorities to adopt.— (1) The testator, or after his death any person claiming as executor or otherwise under a will, may present it to any Registrar or Sub-Registrar for registration.

(2) The donor, or after his death the donee, of any authority to adopt, or the adoptive son, may present it to any Registrar or Sub-Registrar for registration.

41. Registration of wills and authorities to adopt.— (1) A will or an authority to adopt, presented for registration by the testator or donor, may be registered in the same manner as any other document.

(2) A will or authority to adopt presented for registration by any other person entitled to present it shall be registered if the registering officer is satisfied—

- (a) that the will or authority was executed by the testator or donor, as the case may be;
- (b) that the testator or donor is dead; and
- (c) that the person presenting the will or authority is, under section 40, entitled to present the same.

PART IX

³[Deposit and Disposal of Wills]

¹Inserted by the Registration (Amendment) Act 2024 (XIV of 2024), published in the Punjab Gazette (Extraordinary), dated: 21 November 2024, p. 1405, s. 2(a).

²Inserted by the Registration (Amendment) Act 2024 (XIV of 2024), published in the Punjab Gazette (Extraordinary), dated: 21 November 2024, p. 1405, s. 2(b).

³Substituted for the cross-heading "OF THE DEPOSIT OF WILLS" by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 9.

42. Deposit of wills.— ¹[(1)] Any testator may, either personally or by duly authorized agent, deposit with any Registrar his will in a sealed cover superscribed with the name of the testator and that of his agent (if any) and with a statement of the nature of the document.

²[(2)] The testator shall also endorse on the cover the name and address of the person to whom the original document shall be delivered after registration thereof, after his death.]

43. Procedure on deposit of wills.— (1) On receiving such cover, the Registrar, if satisfied that the person presenting the same for deposit is the testator or his agent, shall transcribe in his Register-book No. 5 the superscription aforesaid, and shall note in the same book and on the said cover the year, month, day and hour of such presentation and receipt, and the names of any persons who may testify to the identity of the testator or his agent, and any legible inscription which may be on the seal of the cover.

(2) The Registrar shall then place and retain the sealed cover in his fire-proof box.

44. Withdrawal of sealed cover deposited under section 42.— If the testator who has deposited such cover wishes to withdraw it, he may apply, either personally or by duly authorized agent to the Registrar who holds it in deposit, and such Registrar, if satisfied that the applicant is actually the testator or his agent, shall deliver the cover accordingly.

45. Proceedings on death of depositor.— (1) If, on the death of a testator who has deposited a sealed cover under section 42, application be made to the Registrar who holds it in deposit to open the same, and if the Registrar is satisfied that the testator is dead, he shall, in the applicant's presence, open the cover, and, at the applicant's expense, cause the contents thereof to be copied into his Book No. 3 ³[and then deliver the deposited will to the nominee of the testator or his representative].

⁴[(2)] If, in respect of any will deposited, no steps are taken by the testator or other person under section 44 or sub-section (1) of this section, the Registrar shall follow the procedure hereinafter provided for the disposal of such will or sealed cover.]

46. Saving of certain enactments and powers of Courts.— (1) Nothing hereinbefore contained shall affect the provisions of section ⁵[294 of the Succession

¹Numbered by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 10.

²Added *ibid*.

³Added by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 11.

⁴Substituted *ibid*.

⁵Substituted for the expression "259 of the Indian Succession Act, 1865" by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), published in the Gazette of Pakistan (Extraordinary), dated: 8 July 1981, pp. 345-475, s. 3 read with the Second Schedule.

Act, 1925 (XXXIX of 1925)], ¹[*****] or the power of any Court by order to compel the production of any will.

(2) When any such order is made, the Registrar shall, unless the will has been already copied under section 45, open the cover and cause the will to be copied into his Book No. 3 and make a note on such copy that the original has been removed into Court in pursuance of the order aforesaid.

²**[46A. Destruction of wills.—** (1) Any will in deposit with a Registrar at the commencement of the Registration (Amendment) Ordinance, 1962, and any will thereafter deposited may be destroyed after following the procedure hereinafter provided, if the will is not registered before such destruction.

(2) Every registering officer shall on the first day of July in the year next after the commencement of the Registration (Amendment) Ordinance, 1962, and on the first day of July in every succeeding third year, send by post a notice to every depositor and his nominee, inquiring about the depositor's present address and shall enter on the cover and in his registers any new address supplied in response to such notice.

(3) If, as a result of such notice or in any other manner, the Registrar is satisfied that the testator has died, the Registrar shall, after making an entry in his books as to the death of the testator and the nature of the information on which he has acted, open the cover in the presence of a judicial officer (not below the rank of a Civil Judge or Munsif). He shall thereupon issue a notice to the executor, if any, and also to such other person or persons deriving any benefit under the will as the two officers may determine, informing them about the existence of the will and also that unless steps are taken within a period of six months therefrom for registration of the will the document shall be liable to be destroyed.

(4) Notwithstanding the expiry of the period specified in the notice, until the will is actually destroyed in accordance with the provisions of the Destruction of Records Act, 1917³, the registration of the same can be effected, at the request of the person entitled thereto, on payment of the proper charges.]

PART X

Of the Effects of Registration and Non-Registration

47. Time from which registered document operates.— A registered document shall operate from the time from which it would have commenced to operate if no registration thereof had been required or made, and not from the time of its registration.

¹The expression "or of section 81 of the Probate and Administration Act, 1881," was omitted *ibid*.

²Inserted by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 12.

³V of 1917.

48. Registered documents relating to property when to take effect against oral agreements.— All non-testamentary documents duly registered under this Act, and relating to any property, whether moveable or immoveable, shall take effect against any oral agreement or declaration relating to such property, unless where the agreement or declaration has been accompanied or followed by delivery of possession ¹[and the same constitutes a valid transfer under any law for the time being in force:

Provided that a mortgage by deposit of title-deeds as defined in section 58 of the Transfer of Property Act, 1882², shall take effect against any mortgage-deed subsequently executed and registered which relates to the same property].

49. Effect of non-registration of documents required to be registered.— ³[No document required to be registered under this Act or under any earlier law providing for or relating to registration of documents shall—

(a) operate to create, declare, assign, limit or extinguish, whether in present or in future, any right, title or interest, whether vested or contingent, to or in immoveable property, or

(b) confer any power to adopt,

unless it has been registered.]

50. Certain registered documents relating to land, to take effect against unregistered documents.— (1) Every document of the kinds mentioned in clauses (a), (b), (c) and (d) of section 17, sub-section (1), ⁴[and every document registerable under section 18, in so far as such document affects immoveable property or acknowledges the receipt or payment of any consideration in respect of any transaction relating to immoveable property], shall, if duly registered, take effect as regards the property comprised therein, against every unregistered document relating to the same property, and not being a decree or order, whether such unregistered document be of the same nature as the registered document or not ⁵[.]

⁶[Provided that the person in possession of the property under an unregistered document prior in date, would be entitled to the rights under section 53A of the Transfer of Property Act, 1882 (IV of 1882) if the conditions of that section are fulfilled:

¹Inserted by the Transfer of Property (Amendment) Supplementary Act, 1929 (XXI of 1929); assented to by the Governor General on 4 October 1929; and, was published in the Gazette of India (Extraordinary), dated: 25 October 1929, pp. 133-153, s. 10: it came into force on 1 April 1930.

²IV of 1882.

³Substituted by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 13.

⁴Substituted for the expression "and clauses (a) and (b) of section 18" *ibid.*, s. 14.

⁵*Ibid.* for the "full stop".

⁶Added by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 14.

Provided further that the person in whose favour an unregistered document is executed shall be entitled to enforce the contract under the unregistered document in a suit for specific performance against a person claiming under a subsequent registered document, subject to the provisions of clause (b) of section 27 of the Specific Relief Act, 1877 (I of 1877).]

(2) Nothing in sub-section (1) applies to leases exempted under the proviso to sub-section (1) of section 17 or to any document mentioned in sub-section (2) of the same section, or to any registered document which had not priority under the law in force at the commencement of this Act.

Explanation.— In cases where Act No. XVI of 1864 or the Indian Registration Act, 1866¹, was in force in the place and at the time in and at which such unregistered document was executed, “unregistered” means not registered according to such Act, and, where the document is executed after the first day of July, 1871, not registered under the Indian Registration Act, 1871², or the Indian Registration Act, 1877³, or this Act.

PART XI Of the Duties and Powers of Registering Officers

(A) *As to the Register-books and Indexes*

51. Register-books to be kept in the several offices.— (1) The following books shall be kept in the several offices hereinafter named, namely:—

A— In all registration offices—

Book 1, “Register of non-testamentary documents relating to immoveable property;”

Book 2, “Record of reasons for refusal to register;”

Book 3, “Register of wills and authorities to adopt;” and

Book 4, “Miscellaneous Register”.

B— In the offices of Registrar—

Book 5, “Register of deposits of wills.”

(2) In Book 1 shall be entered or filed all documents or memoranda registered under sections 17, 18 and 89 which relate to immoveable property, and are not wills.

(3) In Book 4 shall be entered all documents registered under ⁴[* * * *] section 18 which do not relate to immoveable property.

(4) Nothing in this section shall be deemed to require more than one set of books where the office of Registrar has been amalgamated with the office of a Sub-Registrar.

¹XX of 1866.

²VIII of 1871.

³III of 1877.

⁴The expression “clauses (d) and (f) of” was omitted by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 15.

¹[(5) If, in the opinion of the Registrar, any of the books mentioned in sub-section (1) is in danger of being destroyed or becoming illegible wholly or partially, the Registrar may, by a written order, direct such book or portion thereof as he thinks fit, to be recopied and authenticated in such manner as may be prescribed by rules, and the copy prepared and authenticated under such direction shall, for all purposes of this Act and of the Evidence Act, 1872 (I of 1872), be deemed to be the original book or portion and all references in this Act to the original book shall be deemed to be to the book or portion so recopied and authenticated.]

52. Duties of registering officers when document presented.— (1)(a) The day, hour and place of presentation, and the signature of every person presenting a document for registration, shall be endorsed on every such document at the time of presenting it;

- (b) a receipt for such document shall be given by the registering officer to the person presenting the same; and,
- (c) subject to the provisions contained in section 62, every document admitted to registration shall without unnecessary delay be copied in the book appropriated therefor according to the order of its admission.

(2) All such books shall be authenticated at such intervals and in such manner as is from time to time prescribed by the Inspector General.

53. Entries to be numbered consecutively.— All entries in each book shall be numbered in a consecutive series, which shall commence and terminate with the year, a fresh series being commenced at the beginning of each year.

54. Current indexes and entries therein.— In every office in which any of the books hereinbefore mentioned are kept, there shall be prepared current indexes of contents of such books; and every entry in such indexes shall be made, so far as practicable, immediately after the registering officer has copied, or filed a memorandum of, the document to which it relates.

55. Indexes to be made by registering officers, and their contents.— (1) Four such indexes shall be made in all registration offices, and shall be named, respectively, Index No. I, Index No. II, Index No. III and Index No. IV.

(2) Index No. I shall contain the names and additions of all persons executing and of all persons claiming under every document entered or memorandum filed in Book No. 1.

(3) Index No. II shall contain such particulars mentioned in section 21 relating to every such document and memorandum as the Inspector General from time to time directs in that behalf.

(4) Index No. III shall contain the names and additions of all persons executing every will and authority entered in Book No. 3, and of the executors and persons respectively appointed thereunder, and after the death of the testator or the donor (but not before) the names and additions of all persons claiming under the same.

(5) Index No. IV shall contain the names and additions of all persons executing and of all persons claiming under every document entered in Book No. 4.

¹Added *ibid*.

(6) Each index shall contain such other particulars, and shall be prepared in such form as the Inspector General from time to time directs.

¹[(7) If, in the opinion of the Registrar, any of the indexes mentioned in sub-section (1) is in danger of being destroyed or becoming illegible wholly or partially, the Registrar may, by a written order, direct such index or portion thereof, as he thinks fit, to be recopied in such manner as may be prescribed by rules, and any copy so prepared shall, for the purposes of this Act and of the Evidence Act, 1872 (I of 1872), be deemed to be the original index or portion and all references in this Act to the original index or portion shall be deemed to be references to the index or portion prepared as aforesaid.]

²[56. *Copy of entries in Indexes Nos. I, II and III to be sent by the Sub-Registrar to Register and filed.*— * * * * *]

57. Registering officers to allow inspection of certain books and indexes, and to give certified copies of entries.— (1) Subject to the previous payment of the fees payable in that behalf the Books Nos. 1 and 2 and the Indexes relating to Book No. 1 shall be at all times open to inspection by any person applying to inspect the same; and, subject to the provisions of section 62, copies of entries in such books shall be given to all persons applying for such copies.

(2) Subject to the same provisions, copies of entries in Book No. 3 and in the Index relating thereto shall be given to the persons executing the documents to which such entries relate, or to their agents, and after the death of the executants (but not before) to any person applying for such copies.

(3) Subject to the same provisions, copies of entries in Book No. 4 and in the Index relating thereto shall be given to any person executing or claiming under the documents to which such entries respectively refer, or to his agent or representative.

(4) The requisite search under this section for entries in Books Nos. 3 and 4 shall be made only by the registering officer.

(5) All copies given under this section shall be signed and sealed by the registering officer, and shall be admissible for the purpose of proving the contents of the original documents.

(B) As to the Procedure on admitting to Registration

58. Particulars to be endorsed on documents admitted to registration.— (1) On every document admitted to registration, other than a copy of a decree or order, or a copy sent to a registering officer under section 89, there shall be endorsed from time to time the following particulars, namely:—

- (a) the signature and addition of every person admitting the execution of the document, and, if such execution has been admitted by the representative, assign or agent of any person, the signature and addition of such representative, assign or agent;

¹ Added by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 16.

² Repealed by the Indian Registration (Amendment) Act, 1929 (XV of 1929); assented to by the Governor General on 1 October 1929; and, was published in the Punjab Gazette (Extraordinary), dated: 18 October 1929, p. 118, s. 2.

- (b) the signature and addition of every person examined in reference to such document under any of the provisions of this Act; and
- (c) any payment of money or delivery of goods made in the presence of the registering officer in reference to the execution of the document, and any admission of receipt of consideration, in whole or in part, made in his presence in reference to such execution.

(2) If any person admitting the execution of a document refuses to endorse the same, the registering officer shall nevertheless register it, but shall at the same time endorse a note of such refusal.

59. Endorsements to be dated and signed by registering officer.— The registering officer shall affix the date and his signature to all endorsements made under sections 52 and 58, relating to the same document and made in his presence on the same day.

60. Certificate of registration.— (1) After such of the provisions of sections 34, 35, 58 and 59 as apply to any document presented for registration have been complied with, the registering officer shall endorse thereon a certificate containing the word “registered”, together with the number and page of the book in which the document has been copied.

(2) Such certificate shall be signed, sealed and dated by the registering officer, and shall then be admissible for the purpose of proving that the document has been duly registered in manner provided by this Act, and that the facts mentioned in the endorsements referred to in section 59 have occurred as therein mentioned.

61. Endorsements and certificate to be copied and document returned.— (1) The endorsements and certificate referred to and mentioned in sections 59 and 60 shall thereupon be copied into the margin of the Register-book, and the copy of the map or plan (if any) mentioned in section 21 shall be filed in Book No. 1.

(2) The registration of the document shall thereupon be deemed complete, and the document shall then be returned to the person who presented the same for registration, or to such other person (if any) as he has nominated in writing in that behalf on the receipt mentioned in section 52.

62. Procedure on presenting document in language unknown to registering officer.— (1) When a document is presented for registration under section 19, the translation shall be transcribed in the register of documents of the nature of the original, and, together with the copy referred to in section 19, shall be filed in the registration office.

(2) The endorsements and certificate respectively mentioned in sections 59 and 60 shall be made on the original, and, for the purpose of making the copies and memoranda required by sections 57, 64, 65 and 66, the translation shall be treated as if it were the original.

63. Power to administer oaths and records of substance of statements.— (1) Every registering officer may at his discretion administer an oath to any person examined by him under the provisions of this Act.

(2) Every such officer may also at his discretion record a note of the substance of the statement made by each such person, and such statement shall be read over, or (if made in a language with which such person is not acquainted) interpreted to him in a language with which he is acquainted, and, if he admits the correctness of such note, it shall be signed by the registering officer.

(3) Every such note so signed shall be admissible for the purpose of proving that the statements therein recorded were made by the persons and under the circumstances therein stated.

(C) Special Duties of Sub-Registrar

64. Procedure where document relates to land in several sub-districts.— (1) Every Sub-Registrar on registering a non-testamentary document relating to immoveable property not wholly situate in his own sub-district shall make a memorandum thereof and of the endorsement and certificate (if any) thereon, and send the same to every other Sub-Registrar subordinate to the same Registrar as himself in whose sub-district any part of such property is situate, and such Sub-Registrar shall file the memorandum in his Book No. 1.

65. Procedure where document relates to land in several districts.— (1) Every Sub-Registrar on registering a non-testamentary document relating to immoveable property situate in more districts than one shall also forward a copy thereof and of the endorsement and certificate (if any) thereon, together with a copy of the map or plan (if any) mentioned in section 21 to the Registrar of every district in which any part of such property is situate other than the district in which his own sub-district is situate.

(2) The Registrar on receiving the same shall file in his Book No. 1 the copy of the document and the copy of the map or plan (if any), and shall forward a memorandum of the document to each of the Sub-Registrars subordinate to him within whose sub-district any part of such property is situate: and every Sub-Registrar receiving such memorandum shall file it in his Book No. 1.

(D) Special Duties of Registrar

66. Procedure after registration of documents relating to land.— (1) On registering any non-testamentary document relating to immoveable property, the Registrar shall forward a memorandum of such document to each Sub-Registrar subordinate to himself in whose sub-district any part of the property is situate.

(2) The Registrar shall also forward a copy of such document, together with a copy of the map or plan (if any) mentioned in section 21, to every other Registrar in whose district any part of such property is situate.

(3) Such Registrar on receiving any such copy shall file it in his Book No. 1 and shall also send a memorandum of the copy to each of the Sub-Registrars subordinate to him within whose sub-district any part of the property is situate.

(4) Every Sub-Registrar receiving any memorandum under this section shall file it in his Book No.1.

67. Procedure after registration under section 30, sub-section (2).— On any document being registered under section 30, sub-section (2), a copy of such document and of the endorsements and certificate thereon shall be forwarded to every Registrar within whose district any part of the property to which the instrument relates is situate, and the Registrar receiving such copy shall follow the procedure prescribed for him in section 66, sub-section (1).

*(E) Of the controlling Powers of Registrars
and Inspectors General*

68. Power of Registrar to superintend and control Sub-Registrars.— (1) Every Sub-Registrar shall perform the duties of his office under the superintendence and control of the Registrar in whose district the office of such Sub-Registrar is situate.

(2) Every Registrar shall have authority to issue (whether on complaint or otherwise) any order consistent with this Act which he considers necessary in respect of any act or omission of any Sub-Registrar subordinate to him or in respect of the rectification of any error regarding the book or the office in which any document has been registered.

69. Power of Inspector General to superintend registration offices and make rules.— (1) The Inspector General shall exercise a general superintendence over all the registration offices in the territories under the ¹[Government], and shall have powers from time to time to make rules consistent with this Act—

- (a) providing for the safe custody of books, papers and documents, ²[* * * * *];
- (b) declaring what languages shall be deemed to be commonly used in each district;
- (c) declaring what territorial divisions shall be recognized under section 21;
- ³[(cc) regulating and supervising the profession of conveyance writing;]
- (d) regulating the amount of fines imposed under sections 25 and 34, respectively;
- (e) regulating the exercise of the discretion reposed in the registering officer by section 63;
- (f) regulating the form in which registering officers are to make memoranda of documents;
- (g) regulating the authentication by Registrars and Sub-Registrars of the books kept in their respective offices under section 51;

¹Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

²Omitted the expression "and also for the destruction of such books, papers and documents as need no longer be kept" by the Destruction of Record Act, 1917 (V of 1917); assented to by the Governor General on 28 February 1917; and, was published in the Gazette of India (Extraordinary), dated: 16 March 1917, pp. 35-36, s. 6 read with the Schedule.

³Inserted by the Registration (Second Amendment) Act 2018 (XXVII of 2018), published in the Punjab Gazette (Extraordinary), dated: 24 May 2018, pp. 8169-8170, s. 2.

- (h) declaring the particulars to be contained in Indexes Nos. I, II, III and IV, respectively;
- (i) declaring the holidays that shall be observed in the registration offices; and
- (j) generally, regulating the proceedings of the Registrars and Sub-Registrars.

(2) The rules so made shall be submitted to the ¹[Government] for approval, and, after they have been approved, they shall be published in the official Gazette, and on publication shall have effect as if enacted in this Act.

70. Power of Inspector General to remit fines.— The Inspector General may also, in the exercise of his discretion, remit wholly or in part the difference between any fine levied under section 25 or section 34, and the amount of the proper registration fee.

²[PART XI-A

Of the Copying of Documents by means of Photography

70-A. Application of this Part.— This Part shall apply to such areas only as are specified in a notification issued under section 70-D.

70-B. Definition.— For the purposes of this Part “Photo-Registrar” means a Photo-Registrar appointed under this Part.

70-C. Appointment of Photo-Registrars.— The ³[Government] may appoint a Registrar or Sub-Registrar or any other person to be a Photo-Registrar for the performance of duties under this Part:

Provided that the ⁴[Government] may, subject to such restrictions and conditions as it thinks fit, delegate the power of appointing Photo-Registrars to the Inspector-General of Registration.

70-D. Documents may be photographed in areas notified by Government.— (1) The ⁵[Government] may, by notification in the official Gazette, direct that in any district or sub-district specified in the notification copies of documents admitted to registration under this Act shall be made by means of photography.

¹Substituted for the words “Provincial Government” by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5. They were earlier substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

²Inserted by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 17.

³Substituted for the words “Provincial Government” by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5.

⁴*Ibid.*

⁵*Ibid.*

(2) On the issue of such notification it shall be translated into ¹[* * * * *]
[* * * * *] Urdu ²[* * * * *] and shall be posted in a conspicuous place at the
Registration offices affected by the notification.

70-E. Application of Act to areas notified under section 70-D.— In any district or sub-district in respect of which a notification has been issued under section 70-D, the provisions of this Act shall, for the purposes of this Part, be subject to the following modifications, namely:—

(1)(a) Every document admitted to registration under section 35 or section 41 shall on every page—

- (i) be signed in the presence of the registering officer by the person or any one of the persons presenting the document for registration; and
 - (ii) be carefully marked with an identification stamp and the serial number of the document.
- (b) It shall be then transmitted by the registering officer, unless he is himself the Photo-Registrar, to the Photo-Registrar, and the registering officer or the Photo-Registrar, as the case may be, shall cause each side of each page of such document together with all stamps, endorsements, seals, signatures, thumb-impressions and certificates appearing thereon to be photographed without subtraction or alteration. He may for this purpose cut or untie, without breaking any seals, the thread or ribbon, if any, wherewith the pages of the document are sewn together, in order to separate the pages of the document, and, as soon as the document has been photographed, he shall, as far as practicable, exactly rebind the document as before, and, if he has cut the thread or ribbon shall seal it over the joint with his seal:

Provided that the party presenting the document for registration shall, if he so desires, be allowed to be present and watch the unbinding, rebinding and sealing of the document:

Provided further that if the party presenting the document so requests the document shall be returned to him unbound:

Provided also that before or after transmission of the document to the Photo-Registrar the party presenting the document may require the registering officer to have it copied by hand under section 52, or if the document has been presented for registration under section 19 its translation copied under section 62 on payment of an additional copying fee.

¹Omitted the expression "Bengali in the case of the Province of East Pakistan, and in" by the Federal Adaptation of Laws Order, 1975 (P.O. No. 4 of 1975), published in the Gazette of Pakistan (Extraordinary), dated: 1 August 1975, pp. 435-467, Article 2 read with the Schedule.

²Omitted the expression "in the case of Province of West Pakistan," *ibid*.

- (c) There shall then be prepared and preserved the negative and at least one Photographic print and to each such negative and print the Photo Registrar shall fix his signature and seal in token of the exact correspondence of the copy to the original document, as admitted for registration:

Provided that when more than one such negative is recorded on one length of film and the Photo-Registrar has affixed his signature and seal at the end of such length of film certifying in the manner prescribed by rules made in this behalf, the exact correspondence of all copies on such length of film with the original documents, the Photo-Registrar shall be deemed to have affixed his signature and seal to each such negative on such length of film.

- (d) One set of such prints arranged in the order of their serial numbers shall be made up into books and sewn or bound together. To each such book the Registrar or Sub-Registrar shall prefix a certificate of the serial numbers it contains, and the books shall then be preserved in the records of the Sub-Registrar. The negatives shall be preserved in such suitable place as the Inspector-General may prescribe.

(2) All words and expressions used in the Act with reference to the making of copies of documents by hand or the entering or filing of documents or memoranda in books provided under section 16 shall, so far as may be necessary, be construed as referring to the making of such copies by means of photography or the entering or filing of documents or memoranda in books made up of copies prepared by means of photography.

(3) Where this Part applies the sections mentioned below shall be deemed to be modified as follows:—

- (a) In section 19 the words “and also by a true copy” shall be omitted;
- (b) sub-section (4) of section 21 shall be omitted;
- (c) the words “according to the order of its admission” occurring in clause (c) of sub-section (1) of section 52 shall be omitted;
- (d) section 53 shall be omitted;
- (e) in sub-section (1) of section 60 the words “and page” shall be omitted;
- (f) sub-section (1) of section 61 shall be omitted; and
- (g) in sub-section (1) of section 62,—
 - (i) for the word “transcribed” the word “copied” shall be substituted; and
 - (ii) for the words and figures “copy referred to in section “19” the words “photograph of the original” shall be substituted.

70-F. The Inspector-General may, with the previous approval of the ¹[Government], by notification in the official Gazette, make rules for the purposes of giving effect to the provisions of this Part.]

PART XII
Of Refusal to Register

71. Reasons for refusal to register to be recorded.— (1) Every Sub-Registrar refusing to register a document, except on the ground that the property to which it relates is not situate within his sub-district, shall make an order of refusal and record his reasons for such order in his Book No. 2, and endorse the words “registration refused” on the document; and on application made by any person executing or claiming under the document, shall, without payment and unnecessary delay, give him a copy of the reasons so recorded.

(2) No registering officer shall accept for registration a document so endorsed unless and until, under the provisions hereinafter contained, the document is directed to be registered.

72. Appeal to Registrar from orders of Sub-Registrar refusing registration on ground other than denial of execution.— (1) Except where the refusal is made on the ground of denial of execution, an appeal shall lie against an order of a Sub-Registrar refusing to admit a document to registration (whether the registration of such document is compulsory or optional) to the Registrar to whom such Sub-Registrar is subordinate, if presented to such Registrar within thirty days from the date of the order; and the Registrar may reverse or alter such order.

(2) If the order of the Registrar directs the document to be registered and the document is duly presented for registration within thirty days after the making of such order, the Sub-Registrar shall obey the same, and thereupon shall, so far as may be practicable, follow the procedure prescribed in sections 58, 59 and 60; and such registration shall take effect as if the document had been registered when it was first duly presented for registration.

73. Application to Registrar where Sub-Registrar refuses to register on ground of denial of execution.— (1) When a Sub-Registrar has refused to register a document on the ground that any person by whom it purports to be executed, or his representative or assign, denies its execution, any person claiming under such document, or his representative, assign or agent authorized as aforesaid, may, within thirty days after the making of the order of refusal, apply to the Registrar to whom such Sub-Registrar is subordinate in order to establish his right to have the document registered.

(2) Such application shall be in writing and shall be accompanied by a copy of the reasons recorded under section 71, and the statements in the application shall be verified by the applicant in manner required by law for the verification of plaints.

¹Substituted for the words “Provincial Government” by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 5.

74. Procedure of Registrar on such application.— In such case, and also where such denial as aforesaid is made before a Registrar in respect of a document presented for registration to him, the Registrar shall, as soon as conveniently may be, enquire—

- (a) whether the document has been executed;
- (b) whether the requirements of the law for the time being in force have been complied with on the part of the applicant or person presenting the document for registration, as the case may be, so as to entitle the document to registration.

75. Order by Registrar to register and procedure thereon.— (1) If the Registrar finds that the document has been executed and that the said requirements have been complied with, he shall order the document to be registered.

(2) If the document is duly presented for registration within thirty days after the making of such order, the registering officer shall obey the same and thereupon shall, so far as may be practicable, follow the procedure prescribed in sections 58, 59 and 60.

(3) Such registration shall take effect as if the document had been registered when it was first duly presented for registration.

(4) The Registrar may, for the purpose of any enquiry under section 74, summon and enforce the attendance of witnesses, and compel them to give evidence, as if he were a Civil Court, and he may also direct by whom the whole or any part of the costs of any such enquiry shall be paid, and such costs shall be recoverable as if they had been awarded in a suit under the Code of Civil Procedure, 1908¹.

76. Order of refusal by Registrar.— (1) Every Registrar refusing—

- (a) to register a document except on the ground that the property to which it relates is not situate within his district or that the document ought to be registered in the office of a Sub-Registrar, or
- (b) to direct the registration of a document under section 72 or section 75, shall make an order of refusal and record the reasons for such order in his Book No. 2, and, on application made by any person executing or claiming under the document, shall, without unnecessary delay, give him a copy of the reasons so recorded.

(2) No appeal lies from any order by a Registrar under this section or section 72.

77. Suit in case of order of refusal by Registrar.— (1) Where the Registrar refuses to order the document to be registered, under section 72 or section 76, any person claiming under such document, or his representative, assign or agent, may within thirty days after the making of the order of refusal, institute in the Civil Court, within the local limits of whose original jurisdiction is situate the office in which the document is sought to be registered, a suit for a decree directing the document to be registered in such office if it be duly presented for registration within thirty days after the passing of such decree ²[:]

¹ V of 1908.

² Substituted for the “full stop” by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 18.

¹[Provided that failure to file a suit or the dismissal of a suit filed under this section shall not disentitle a party to any other remedy to which he may be entitled, on the basis of the unregistered document.]

(2) The provisions contained in sub-sections (2) and (3) of section 75 shall, mutatis mutandis, apply to all documents presented for registration in accordance with any such decree, and, notwithstanding anything contained in this Act, the document shall be receivable in evidence in such suit.

PART XIII

Of the Fees for Registration, Searches and Copies

78. Fees to be fixed by ²[Government].— ³[* * * * *] the ⁴[Government] shall prepare a table of fees payable—

- (a) for the registration of documents;
- (b) for searching the registers;
- (c) for making or granting copies of reasons, entries or documents, before, on or after registration;
and of extra or additional fees payable—
- (d) for every registration under section 30;
- (e) for the issue of commission;
- (f) for filing translations;
- (g) for attending at private residences;
- (h) for the safe custody and return of documents; and
- (i) for such other matters as appear to the ⁵[Government] necessary to effect the purposes of this Act ⁶[:]

¹ Added *ibid*.

² Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 11. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

³ Omitted the words "Subject to the control of the Governor-General in Council" by the Devolution Act, 1920 (XXXVIII of 1920); assented to by the Governor General on 14 September 1920; and, was published in the Government Gazette, Punjab and its Dependencies (Extraordinary), dated: 24 September 1920, pp. 127-153, s. 2 read with the First Schedule.

⁴ Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 11. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁵ Substituted for the words "Provincial Government" by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 11. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁶ Substituted for the "full-stop" by the Banking and Financial Services (Amendment of Laws) Ordinance, 1984 (LVII of 1984), published in the Gazette of Pakistan (Extraordinary), dated: 31 December 1984, pp. 681-695, s. 2 read with the Schedule.

¹[Provided that the ²[Government] may, by notification in the official Gazette, exempt from payment of fees, either in whole or in part, any instrument executed by or in favour of a banking company in the normal course of its banking business.]

Explanation.— For the purpose of this section, “banking company” shall have the same meaning as in the Banking Tribunals Ordinance, 1984.]

79. Publication of fees.— A table of the fees so payable shall be published in the official Gazette, and a copy thereof in English and the vernacular language of the district shall be exposed to public view in every registration office.

80. Fees payable on presentation.— All fees for the registration of documents under this Act shall be payable on the presentation of such documents.

PART XIV Of Penalties

81. Penalty for incorrectly endorsing, copying, translating or registering documents with intent to injure.— Every registering officer appointed under this Act and every person employed in his office for the purposes of this Act, who being charged with the endorsing, copying, translating or registering of any document presented or deposited under its provisions endorses, copies, translates or registers such document in a manner which he knows or believes to be incorrect, intending thereby to cause or knowing it to be likely that he may thereby cause, injury, as defined in the ³[Pakistan] Penal Code⁴, to any person, shall be punishable with imprisonment for a term which may extend to seven years or with fine, or with both.

⁵**[81A. Penalty for engagement as conveyance writer without valid enrolment or license.**— Whoever engages himself as conveyance writer without valid enrolment or license shall be punishable with imprisonment for a term which may extend to three months but which shall not be less than ten days and with fine which may extend to two hundred thousand rupees but which shall not be less than fifty thousand rupees.]

82. Penalty for making false statements, delivering false copies or transactions, false personation, and abetment.— Whoever—

- (a) intentionally makes any false statement, whether on oath or not, and whether it has been recorded or not, before any officer acting in execution of this Act, in any proceeding or enquiry under this Act; or
- (b) intentionally delivers to a registering officer, in any proceeding under section 19 or section 21, a false copy or translation of a document, or a false copy of a map or plan; or

¹Added by the Banking and Financial Services (Amendment of Laws) Ordinance, 1984 (LVII of 1984), published in the Gazette of Pakistan (Extraordinary), dated: 31 December 1984, pp. 681-695, s. 2 read with the Schedule.

²Substituted for the words “Federal Government” by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 11.

³The word “Indian” deemed to be substituted by virtue of its substitution for the word “Pakistan” of the said word in the “short title” of the Indian Penal Code by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with the Schedule.

⁴XLV of 1860.

⁵Inserted by the Registration (Second Amendment) Act 2018 (XXVII of 2018), published in the Punjab Gazette (Extraordinary), dated: 24 May 2018, pp. 8169-8170, s. 3.

- (c) falsely personates another, and in such assumed character presents any document, or makes any admission or statement, or causes any summons or commission to be issued, or does any other act in any proceeding or enquiry under this Act; or

- (d) abets anything made punishable by this Act;

shall be punishable with imprisonment for a term which may extend to seven years, or with fine, or with both.

83. Registering officer may commence prosecutions.— (1) A prosecution for any offence under this Act coming to the knowledge of a registering officer in his official capacity may be commenced by or with the permission of the Inspector General, ¹[* * * * *], the Registrar or the Sub-Registrar, in whose territories, district or sub-district, as the case may be, the offence has been committed.

(2) Offences punishable under this Act shall be, triable by any Court or officer exercising powers not less than those of a Magistrate of the second class.

84. Registering officers to be deemed public servants.— (1) Every registering officer appointed under this Act shall be deemed to be a public servant within the meaning of the ²[Pakistan] Penal Code³.

(2) Every person shall be legally bound to furnish information to such registering officer when required by him to do so.

(3) In section 228 of the ⁴[Pakistan] Penal Code⁵, the words “judicial proceeding” shall be deemed to include any proceeding under this Act.

PART XV Miscellaneous

85. Destruction of unclaimed documents.— Documents (other than wills) remaining unclaimed in any registration office for a period exceeding two years may be destroyed.

86. Registering officer not liable for thing bona fide done or refused in his official capacity.— No registering officer shall be liable to any suit, claim or demand by reason of anything in good faith done or refused in his official capacity.

¹The words “the Branch Inspector-General of Sindh” were omitted by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

²The word “Indian” deemed to be substituted by virtue of its substitution for the word “Pakistan” of the said word in the “short title” of the Indian Penal Code by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with the Schedule.

³XLV of 1860.

⁴The word “Indian” deemed to be substituted by virtue of its substitution for the word “Pakistan” of the said word in the “short title” of the Indian Penal Code by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with the Schedule

⁵XLV of 1860.

87. Nothing so done invalidated by defect in appointment or procedure.—

¹[(1)] Nothing done in good faith pursuant to this Act or any Act hereby repealed, by any registering officer, shall be deemed invalid merely by reason of any defect in his appointment or procedure.

²[(2)] Any defect in or the want of authority of a person to present a document shall not by itself, render invalid the registration of the document or the transaction effected by it.]

88. Registration of documents executed by Government officers or certain public functionaries.—

(1) Notwithstanding anything herein contained, it shall not be necessary for any officer of Government, ³[* * * * *], or for any Official Trustee or Official Assignee, or for the ⁴[*], Receiver or Registrar of a High Court, to appear in person or by agent at any registration office in any proceeding connected with the registration of any instrument executed by him in his official capacity, or to sign as provided in section 58.

(2) Where any instrument is so executed, the registering officer to whom such instrument is presented for registration may, if he thinks fit, refer to any Secretary to Government or to such officer of Government, Administrator General, Official Trustee, Official Assignee, ⁵[*], Receiver or Registrar, as the case may be, for information respecting the same, and, on being satisfied of the executions thereof, shall register the instrument.

89. Copies of certain orders, certificates and instruments to be sent to registering officers and filed.—

(1) Every officer granting a loan under the Land Improvement Loans Act, 1883⁶, shall send a copy of his order to the registering officer within the local limits of whose jurisdiction the whole or any part of the land to be improved or of the land to be granted as collateral security, is situate, and such registering officer shall file the copy in his Book No.1.

(2) Every court granting a certificate of sale of immoveable property under the Code of Civil Procedure, 1908⁷, shall send a copy of such certificate to the registering officer within the local limits of whose jurisdiction the whole or any part of the immoveable property comprised in such certificate is situate, and such officer shall file the copy in his Book No.1.

¹Numbered by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 19.

²Added by the Registration (Amendment) Ordinance, 1962 (XLV of 1962), published in the Gazette of Pakistan (Extraordinary), dated: 7 June 1962, pp. 953-960, s. 19.

³Omitted the expression "or for the Administrator-General of East Pakistan," by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), published in the Gazette of Pakistan (Extraordinary), dated: 8 July 1981, pp. 345-475, s. 3 read with the Second Schedule. The expression "East Bengal," were earlier substituted for the words "Bengal, Madras or Bombay" by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with the Schedule.

⁴Omitted the word "Sheriff" by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with the Schedule.

⁵*Ibid.*

⁶XIX of 1883.

⁷V of 1908.

(3) ¹[Every officer and every co-operative society granting any such loan as is referred to in clause (x) of sub-section (2) of section 17] shall send a copy of any instrument whereby immoveable property is mortgaged for the purpose of securing the repayment of the loan, and, if any such property is mortgaged for the same purpose in the order granting the loan, a copy also of that order, to the registering officer within the local limits of whose jurisdiction the whole or any part of the property so mortgaged is situate, and such registering officer shall file the copy or copies, as the case may be, in his Book No.1.

(4) Every Revenue-officer granting a certificate of sale to the purchaser of immoveable property sold by public auction shall send a copy of the certificate to the registering officer within the local limits of whose jurisdiction the whole or any part of the property comprised in the certificate is situate, and such officer shall file the copy in his Book No.1.

Exemptions from Act

90. Exemption of certain documents executed by or in favour of Government.— (1) Nothing contained in this Act or in the Indian Registration Act, 1877², or in the Indian Registration Act, 1871³, or in any Act thereby repealed shall be deemed to require, or to have at any time required, the registration of any of the following documents or maps, namely:—

- (a) documents issued, received or attested by any officer engaged in making a settlement or revision of settlement of land-revenue, and which form part of the records of such settlement; or
- (b) documents and maps issued, received or authenticated by any officer engaged on behalf of Government in making or revising the survey of any land, and which form part of the record of such survey; or
- (c) documents which under any law for the time being in force, are filed periodically in any revenue-office by patwaris or other officers charged with the preparation of village-records; or
- (d) sanads, inam title-deeds and other documents purporting to be or to evidence grants or assignments by Government of land or of any interest in land; or

⁴[(e) * * * * *]

(2) All such documents and maps shall, for the purposes of sections 48 and 49, be deemed to have been and to be registered in accordance with the provisions of this Act.

¹Substituted for the expression "Every officer granting a loan under the Agriculturists' Loans Act, 1884," by the Registration Act (Amendment) Ordinance, 1961 (XXXII of 1961), published in the Gazette of Pakistan (Extraordinary), dated: 31 July 1961, pp. 1165a-1165b, s. 4.

²III of 1877.

³VIII of 1871.

⁴Omitted by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 12.

91. Inspection and copies of such documents.— Subject to such rules and the previous payment of such fees as the ¹[Government] prescribes in this behalf, all documents and maps mentioned in section 90, ²[clauses (a), (b) and (c),] and all registers of the documents mentioned in clause (d), shall be open to the inspection of any person applying to inspect the same, and, subject as aforesaid, copies of such documents shall be given to all persons applying for such copies.

³[92. *Burmese registration-rules confirmed.*— * * * *]

⁴[93. *Repeals.*— * * * *]

⁵[**THE SCHEDULE.**—

Repeal of Enactments * * * *]

¹Substituted for the words “Provincial Government” by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 13. They were earlier substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

²Substituted for the expression “clauses (a), (b), (c) and (e),” by the Registration (Amendment) Act 2011 (XIX of 2011), published in the Punjab Gazette (Extraordinary), dated: 3 October 2011, pp. 37373-37374, s. 13.

³Repealed by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

⁴Repealed by the Repealing Act, 1938 (I of 1938); assented to by the Governor General on 26 February 1938; and, was published in the Gazette of India (Extraordinary), dated: 5 March 1938, pp. 1-20, s. 2 read with the Schedule.

⁵Repealed by the Repealing Act, 1938 (I of 1938); assented to by the Governor General on 26 February 1938; and, was published in the Gazette of India (Extraordinary), dated: 5 March 1938, pp. 1-20, s. 2 read with the Schedule.